

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
ERIC MCLEAN,

Plaintiff,

-against-

SUMMONS

Basis of Venue
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
DOUGLAS MACEWEN (Shield # 4543), NYPD TRAFFIC
AGENT VANESSA JACKSON (Shield # 2137), NYPD
TRAFFIC AGENT LUZ MOCTEZUMA (Shield # 2546)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and other
Unidentified members of the New York City Police
Department,

Plaintiff designates
New York County
as the place of trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 14, 2023

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE DOUGLAS MACEWEN (Shield # 4543), Detective Boro Brooklyn North.

NYPD TRAFFIC AGENT VANESSA JACKSON (Shield # 2137), TRB South Intersectional Control

NYPD TRAFFIC AGENT LUZ MOCTEZUMA (Shield # 2546), 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
ERIC MCLEAN,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
DOUGLAS MACEWEN (Shield # 4543), NYPD TRAFFIC
AGENT VANESSA JACKSON (Shield # 2137), NYPD
TRAFFIC AGENT LUZ MOCTEZUMA (Shield # 2546)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and other
Unidentified members of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Eric McClean**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, false arrest, unlawful search and seizure, excessive force, sexual assault, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom.

Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of New York County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE DOUGLAS MACEWEN (Shield # 4543), and NYPD TRAFFIC AGENTS VANESSA JACKSON (Shield # 2137) and LUZ MOCTEZUMA (Shield # 2546), on or about May 18, 2022, were employed with the New York City Police Department ("NYPD"), and were at all times relevant herein officers, employees, and agents of the NYPD.
5. NYPD DETECTIVE DOUGLAS MACEWEN (Shield # 4543), and NYPD TRAFFIC AGENTS VANESSA JACKSON (Shield # 2137) and LUZ MOCTEZUMA (Shield # 2546), are being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the

performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h)-hearing examination of Plaintiff on January 27, 2023.

STATEMENT OF FACTS

15. On May 19, 2022, at approximately 8:00 a.m., at approximately 16 Ericsson Place, New York, New York, Plaintiff McClean was unlawfully stopped, searched, and arrested for Assault in the 3rd degree and Harassment in the 2nd degree. At the time of his arrest, and in the day prior to his arrest, officers from the 1st Precinct, including NYPD Detective Douglas Macewen, and NYPD Traffic Enforcement officers Vanessa Jackson and Luz Moctezuma, and P.O. John and Jane Does

#1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On May 19, 2022, at approximately 8:00 a.m., Plaintiff voluntarily reported to the 1st Precinct after NYPD Officers contacted him and told him they would like to question him about an incident that occurred the day before. After reporting to the 1st Precinct, Plaintiff McClean was arrested and charged with assault and harassment of an NYPD Traffic Agent the prior afternoon, on May 18, 2022.
17. On May 18, 2022, Plaintiff McClean was driving toward New Jersey from Manhattan on Canal Street with his girlfriend and their two children when he encountered heavy traffic near the Holland Tunnel. A male traffic agent directed him to go toward the bus lane, and Plaintiff McClean drove toward that lane as directed. Shortly thereafter, an NYPD Traffic Agent, who, based on information and belief, was defendant NYPD Traffic Agent Vanessa Jackson, grabbed Plaintiff's windshield wipers and placed a ticket underneath them. This aggressive action damaged the wipers by breaking the wipers' clip. Plaintiff stopped his vehicle and asked the agent why she had broken his wipers and why she gave him a ticket after he was directed to the bus lane. The agent became aggressive and yelled at Plaintiff McClean. Defendant NYPD Traffic Agent Luz Moctezuma then approached Plaintiff and began to berate him, repeatedly calling him racially discriminatory names and threatening to "fuck him up," while aggressively yelling at him inches from his face. At some point, while berating Plaintiff McClean, Defendant NYPD Agent Moctezuma grabbed his genitals.
18. At some point, an unknown NYPD supervisor approached Plaintiff and told him to leave the scene. Plaintiff complied with this order.

19. Plaintiff was never physically aggressive toward any officer. Rather, defendant officers damaged his property, made disparaging and racially insensitive comments to him, and threatened to harm him. Upon information and belief, despite Plaintiff McClean's innocence, defendant officers falsely told the District Attorney's office that Plaintiff McClean assaulted defendant officer Moctezuma.
20. Plaintiff was placed in custody for thirty hours before he was arraigned in New York County Criminal Court.
21. All charges against Plaintiff McClean were dismissed and sealed on August 22, 2022.
22. As a result of defendant officers' actions Plaintiff McClean suffered loss of liberty, reputational harm, lost wages, and severe emotional harm.

FIRST CAUSE OF ACTION

ASSAULT

23. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth herein. [11/16/2023]
24. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. NYPD Traffic Agent Luz Moctezuma assaulted Plaintiff prior to his false and illegal arrest when said defendant grabbed his genitals while threatening to assault him.

25. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
26. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 26 as if fully set forth herein.
28. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
29. As a result of defendant officers conduct, Plaintiff's liberties were restricted for approximately 30 hours. He was humiliated, assaulted, searched, and subjected to handcuffing and other physical restraints without probable cause.
30. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
31. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION**MALICIOUS PROSECUTION**

32. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
34. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
35. Defendants commenced and continued a criminal proceeding against Plaintiff.
36. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted because Plaintiff was charged with Assault and Harassment when, in reality, he had not committed any offense. These charges were fabricated to protect defendant officers who had engaged in an unlawful harassment and assault of Plaintiff after damaging his vehicle.
37. The prosecution and criminal proceedings were dismissed and sealed August 22, 2022.
38. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
39. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

40. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, and illegal detention.
44. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
45. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon his person over the course of his false arrest.
46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION**INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
50. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
51. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
53. All of the aforementioned acts of defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.

54. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
55. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
56. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

58. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
59. Plaintiff's constitutional rights were violated when NYPD TRAFFIC AGENT LUZ MOCTEZUMA and NYPD OFFICERS JOHN and JANE DO #'s 1-12 subjected him to excessive force. NYPD OFFICER MOCTEZUMA grabbed Plaintiff's genitals and repeatedly threatened him with assault.
60. The use of force was objectively unreasonable. Plaintiff did not pose a threat to the safety of any officer, as he had not tried to evade the police and had not committed any crime. He never attempted to assault or threatened to harm any officer. Rather, he was simply questioning an officer's actions

when another officer, namely NYPD TRAFFIC AGENT LUZ MOCTEZUMA, approached him, called him names, threatened to assault him, and grabbed his genitals.

61. As a result of this conduct, Plaintiff's rights under the fourth, eighth, and fourteenth Amendments of the United States Constitution were violated.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
63. As a result of the aforesaid conduct by defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent. Prior to Plaintiff's arrest he was not engaging in any criminal activity.
64. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
66. Plaintiff was searched by defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS

JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.

67. As a result of the aforesaid conduct by defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's unlawfully approached Plaintiff and improperly searched him without consent, a valid warrant, probable cause, or a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff had committed any crime or was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
68. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crime of assault and harassment.
71. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they

alleged Plaintiff had assaulted an officer when in fact, there was no objective evidence that he committed any crime, and in fact, he was the victim of assault and harassment.

72. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

73. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

74. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE # 1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by subjecting him to excessive force.

77. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
78. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was assaulted by officers, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
80. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff assaulted or harassed anyone. In reality, Plaintiff McClean followed all officers' instructions and yet was subjected to assault, harassment, and criminal mischief.
81. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of objective evidence of Plaintiff's innocence, and failed to

inform them that they had subjected Plaintiff to the crimes of assault, harassment, and criminal mischief.

82. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney, including that video footage that showed Plaintiff was assaulted and harassed by defendant officers.
83. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
84. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
85. Defendants NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.
86. NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
87. Specifically, defendant NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.

88. Notwithstanding the perjurious and fraudulent conduct of defendant NYPD DETECTIVE DOUGLAS MACEWEN and NYPD TRAFFIC AGENTS VANESSA JACKSON and LUZ MOCTEZUMA, and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on August 22, 2022.
89. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he was physically injured, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

90. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
91. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
92. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- e. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 93. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
- 94. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
- 95. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
- 96. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.
- 97. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff' constitutional rights.
- 98. The acts complained of deprived the Plaintiff of his right:
 - A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;

C. Not to have summary punishment imposed upon them; and

D. To receive equal protection under the law.

WHEREFORE, ERIC MCCLEAN, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
November 14, 2023

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE DOUGLAS MACEWEN (Shield # 4543), Detective Boro Brooklyn North.
NYPD TRAFFIC AGENT VANESSA JACKSON (Shield # 2137), TRB South Intersectional Control
NYPD TRAFFIC AGENT LUZ MOCTEZUMA (Shield # 2546), 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
November 14, 2023

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.